

26PR00045 Matter of Richard B. Iverson Trust

County: sonoma

Division: Probate

Hearing date: 2026-06-18

Motion: Thomas Iverson's Petition for Instructions

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Tentative Ruling: Per the petitioner's statement of issues filed June 8, 2026, the only issues raised by this petition that remain in dispute are (1) the petitioner's request for reimbursement of costs of suit, and (2) the request to require Wendy Sue Iverson to pay fair market rent during her occupancy of the trust owned real property, and the amount of rent that should be paid.

The petitioner's request for reimbursement of costs of suit is DENIED. Costs can be awarded in favor of the petitioner, to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require. California Probate Code §1002. Here, the petitioner has not been successful in vindicating any rights as a beneficiary and has not otherwise caused any benefit to the trust. Therefore, justice does not require reimbursement of his costs and the petitioner shall bear his own costs of suit.

The petitioner's request that Wendy Sue Iverson be required to pay rent is DENIED. See the Court's ruling on the Petition filed 4/17/26 by the trustee, below.